

25SMCV03338 25SMCV03338

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This is a demurrer reflecting an attack on plaintiff's third attempt to state a viable cause of action. Plaintiff opposes.

The SAC alleges that plaintiff was walking on the sand at Will Rogers Beach in a recreational sand area.

As plaintiff was going past unattended life guard tower number 12, he tripped and fell on an exposed, unsecured, and unmarked rock or rocks. He claims he was severely injured. He alleges that defendants negligently maintained, managed, operated, controlled, and safeguarded the premises such that an exposed or unmarked rock was allowed to exist. Specifically, he alleges that defendant purportedly cleans and rakes public beaches daily using specialized equipment that cleans 30,000 square meters of sand per hour. Plaintiff states that the coastline is cleaned daily and that over 10,000 tons of trash are removed annually such that the "main objective of these maintenance activities is to remove debris like glass and metals, as well as natural materials like seaweed, wood, and rocks, from recreational sand areas." (SAC at par. 7.)

The court has previously sustained a similar demurrer twice before and much of the court's analysis was set forth there and will not be repeated here, although it still applies. The court warned that it was unlikely to grant leave to amend again if this demurrer succeeds. Defendant asserts that the complaint still fails to state sufficient facts. In particular, defendant states that plaintiff failed to show a dangerous condition. The court notes that although a public entity does have a duty to protect against dangerous conditions on public property generally pursuant to Government Code section 835, it has no duty to protect against minor or trivial or insignificant risks; the risk must be

substantial. (Mohler v. County of Santa Clara (2023) 92 Cal.App.5th 418.)

Here, plaintiff claims he tripped over a rock in the sand. Even were the court to accept that defendant actually rakes every inch of coastline, the court does not believe that an exposed rock on a beach, without more, poses a significant risk of injury or that defendant has a duty to remove all rocks.

A sufficiently dangerous condition exists when public property is damaged or has deteriorated in a way that foreseeably endangers those using it or possesses characteristics in its design or feature that leads to the danger. (Cerna v. City of Oakland (2008) 161 Cal.App.4th 1340.) A

condition is not dangerous, though, if even viewing the condition most favorably to the plaintiff, the court determines as a matter of law that the risk was trivial, meaning that no reasonable person would conclude that the condition created a substantial risk when used with due care in a manner it was reasonably foreseeable it would be used.

(Sambrano v. City of San Diego (2001) 94 Cal.App.4th 225.) The fact that an area is not inspected is therefore not enough.

Plaintiff here has not alleged anything about the rock over which he tripped other than to say that it was exposed and unmarked. But a rock on a beach, without more, is a trivial risk at best to one who is looking where one is going even reading the complaint in the most favorable manner to plaintiff. There is no allegation that the rock was hidden or posed some kind of unusual threat or danger. It was just a rock on a beach. Plaintiff suggests that the court might be making unfair inferences against it, in that perhaps the rock was partially concealed. That makes no sense. Plaintiff is the one who tripped over the rock. If it was concealed or partially concealed, he would have so alleged. The fact that it was unsecured or unmarked does not change that. Indeed one wonders how the County would secure a rock or mark it unless it was hidden in some unusual and strange way.

Relatedly, there is no sufficient allegation of notice. Plaintiff suggests that the beach is regularly raked and cleaned, but that is not notice. Notice would require either actual notice—a showing that someone else was hurt or that the condition was known and sufficiently obvious that the risk was apparent and actually seen by the defendant or its agents—or an allegation that defendant created the condition. (Martinez v. City of Beverly Hills (2021) 71 Cal.App.5th 508.) None of that is adequately alleged here. A statement

of routine sand-raking is not sufficient.

The court is aware that Martinez was a summary judgment case, but the legal principles are the same.

Plaintiff must at least allege with reasonable detail that this particular rock was known to the defendant in a way where the danger was readily apparent. The fact that there is a rock on a beach is not enough. And there is no reason to believe that there were prior complaints or that defendant created the condition.

Plaintiff does note that the rock was visible, but the fact that the condition is visible is not enough. (Heskel v. City of San Diego (2014) 227 Cal.App.4th 313.) Indeed, if anything, it suggests that had plaintiff been exercising due care, he would not have tripped on the rock at all.

Defendant also claims immunity. Government Code section 831.21 provides for immunity from dangerous condition liability relating to public beaches if the danger is part of the natural condition.

There is no allegation or suggestion that the defense put the rock in the location in question. It would seem that the immunity applies. The court also notes the laudable policy underlying this statute. It is not possible for the government to become the guarantor or insurer of nature.

Where we are talking about a street or something, we are not talking about nature. But a beach is different. The public benefits from access to beaches in their natural condition.

As a result, if there is an injury resulting from that natural condition, the government is not liable for it.

There is nothing in the complaint that would lead the court to believe that the rock in question was not a naturally occurring natural feature.

The court does not believe that further leave to amend would be fruitful. Plaintiff has not suggested how a fourth attempt to state a claim would succeed. Therefore, the demurrer is SUSTAINED WITHOUT LEAVE TO AMEND. Defendant to lodge an order of dismissal.